

File No.: EXP202310786

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 17, 2023. The complaint is directed against the party identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent is responsible for a video surveillance system that has cameras aimed at public roads, without prior administrative authorization for this.

The complainant provides images showing the location of the cameras and the areas affected by the orientation of said cameras (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Upon consulting the database of this AEPD, a response was received from the respondent on 04/10/23 and 11/10/23, providing various documents regarding the legality of the installed system.

THIRD: On October 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1 c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received by the respondent as evidenced by the acknowledgment of receipt in the file.

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SIXTH: On 30/04/24, this agency received a response to the Initiation Agreement associated with PA/00058/2023 in the following terms:

"That after receiving the complaint, I went to the FFCC (Ertzaina) and to the company specialized in data protection compliance (..) to consult about the possible non-compliance on my part (...)

That to date I have responded to each of the complaints received by this agency providing the requested documents.

That I understand there must be a misunderstanding since the video surveillance system installed at my home is up to date with AEPD regulations.

That I am again providing photographs of the information signs of the video surveillance system installed at my home to verify compliance with its installation.

That I am again providing a cadastral plan so that you can verify the delimitation of my property and everything stated in the previous points (...)"

In view of all the actions taken by the Spanish Agency for Data Protection in this proceeding, the following facts are considered proven,

PROVEN FACTS

First. It is evidenced that five video surveillance cameras have been installed affecting nearby houses, as well as adjacent public space disproportionately.

The complainant provides documentation (Annex I) showing the presence of the cameras on the exterior facade of the property.

Second. It is evidenced that the main responsible for the installation of the system is Ms. B.B.B., with NIF ***NIF.1, who does not deny being responsible for its installation.

Third. It is evidenced that the information sign(s) were not initially complete as they only informed about the person responsible for the installation.

This aspect is reflected in frame No. 5 of the document submitted by the respondent on 04/10/23.

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Fourth. The actual scope of the installed cameras could not be determined, as well as the alleged private area claimed to be owned by the respondent.

In the images provided by the respondent, a parking area is observed (Frame 2 Image Screen Document dated 25/04/24) without it being clear whether the entire video-monitored space is under their ownership.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states: "The proceedings processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Before addressing the substance of the matter, it should be noted that this agency is not competent to resolve civil issues, and that the examination of the documentation

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The cover must be sufficient to prove the legality of the system in question.

If the parking area is of a private nature, this must be documented (e.g., through a technical report from the corresponding City Council), so that this AEPD can be convinced that the cameras in question do not exceed the legally limited scope.

The installed cameras must be confined to the private space of the respondent, that is, the main accesses of the property (e.g., doors and windows), although in the provided frames, it can be observed that the capture includes the adjacent parking area, dealing with data from vehicle license plates and/or individuals passing through it.

Furthermore, in contrast to the documentation provided by the respondent, it should be noted that the certifications issued by the parcel topographic cadastre do not constitute proof of ownership, and therefore are not useful for justifying ownership over a property (e.g., SAP Murcia Section 1, 180/2020, July 13).

Thus, the for the installation of the system must be able to prove that it complies with current legality, providing all necessary documentation that unequivocally proves that the space captured by the cameras is their property and that third parties passing through the area are duly informed that it is a video-monitored area.

III

In this case, we proceed to examine the complaint dated 07/17/23, in which the following main fact is presented:

“installation of various cameras that may affect public space, intimidating various neighbors who pass through the vicinity (...) requesting analysis of the same.”

Article 5.1 c) of the GDPR states the following:

Personal data shall be: “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be recalled that individuals are responsible for ensuring that the installed systems comply with current legality, proving that they meet all the requirements set forth by the applicable regulations. The installation of this type of device must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards the private space, avoiding intimidating neighboring residents with this type of device, as well as monitoring their transit areas without justified cause.

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Neither can this type of device obtain images of public space, as this is the exclusive competence of the State Security Forces and Corps, under the terms of the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a “dummy” camera, it must be preferentially oriented towards private space, as it is considered that this type of device can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals may not install devices for obtaining images of public space and/or the transit of third parties, outside of the cases permitted by the regulations.

IV

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data are obtained, with the following information necessary to ensure fair and

transparent data processing:

a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;

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b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or deletion, or the limitation of its processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 22(4) of the LOPDGDD states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device."

V

In accordance with the evidence available in this warning procedure, it is considered that the respondent has installed a camera system that, according to the documentation provided, it is not possible to determine whether it is affecting a transit area, thereby impacting the rights of third parties regarding the processing of their personal data.

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence presented and a contradictory procedure in which the parties can defend their positions.

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In accordance with this principle, no sanction may be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

The respondent, during the processing of the current procedure, proceeded to correct the "irregularities" in the informative notice, thus confirming the commission of the infringement of Article

13 of the GDPR.

Article 83.5 of the GDPR states: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;

Article 72(1) of the LOPDGDD (LO 3/2018, December 5) regarding the limitation period for very serious infringements "shall expire after three years" and in particular the following:

h) The failure to inform the affected party about the processing of their personal data as provided for in Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law (...).

VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2(b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83(2) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures.

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aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.

VII

Conclusion

In the case of the main claim regarding the alleged , it has not been proven that the area in question, any of the camera(s) are oriented (e.g., parking area) towards a public transit area, therefore, based on the principle of presumption of innocence, it is not appropriate to declare the commission of any administrative infringement in this regard.

As it happens, during the course of the current procedure, the respondent has proceeded to the informative sign, indicating an effective address and the manner of exercising the corresponding rights, no additional measures are established regarding the mentioned infringement.

The parties, however, are reminded that they are informed of the essential aspects of data protection regulations (FJII), and they may provide new evidence regarding the ownership of the land or it is advisable that they contact the local Security Forces and Corps, so that they can carry out the necessary inquiries, which could lead to the opening of a new sanctioning procedure with a monetary fine in case of a new claim in this regard.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, without imposing any measures.

SECOND: TO ORDER the ARCHIVING regarding the alleged infringement of Article 5.1 c) GDPR, as the described infringement has not been proven.

THIRD: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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